



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/02/2026 - 09:00 AM

08/19/2026

4:27 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

25-PRO-01535	IN RE THE: THE NON-EXEMPT GENERATION-SKIPPING TRUST FOR THE BENEFIT OF DAPHNE DAPHNE AND THE EXEMPT GENERATION-SKIPPING TRUST FOR THE BENEFIT OF DAPHNE DAPHNE	PETITION FOR: REMOVAL OF GENERAL AND SPECIAL TRUSTEE AND; APPOINTMENT OF SUCCESSOR GENERAL AND SPECIAL TRUSTEE-Continued from 04/07/26
Line 8[7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, NICHOLAS P. Trustor: DAPHNE, VIRGINIA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. 25-PRO-01540. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. A successor trustee will need to be appointed. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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Judge: Novak, Lisa A.

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25-PRO-01536	IN RE THE DAPHNE NON-EXEMPT MARITAL TRUST (ARTICLE 4) OF THE 1987 TRUST AGREEMENT OF NICHOLAS P. DAPHNE AND VIRGINIA DAPHNE AND DAPHNE EXEMPT MARITAL TRUST (ARTICLE 4) OF THE 1987 TRUST AGREEMENT OF NICHOLAS P. DAPHNE AND VIRGINIA DAPHNE	PETITION FOR: REMOVAL OF TRUSTEE AND; APPOINTMENT OF SUCCESSOR TRUSTEE- Continued from 04/07/26
Line 9 [Line 7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, NICHOLAS P. Trustor: DAPHNE, VIRGINIA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. 25-PRO-01540. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee. This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.